



తెలంగాణ తేలంగానా TELANGANA

SL No. 6959.... Date : 21-10-2016
Sold to : Rajiv Gupta
S/o L N Gupta, R/o. Hyd
For Whom: Sara Infoway ITES India Pvt Ltd

Tsabitha
G 394053

T. SABITHA
Licensed Stamp Vendor
License No. 15-02-002/2014
H.No. 4-9-124, LIC Colony, Hayathnaga
R.R. DIST. Cell No. 929205914

PERFORMANCE BANK GURANTEE

To
Krishak Bharati Cooperative Limited
PO KRIBHCO Nagar, Surat,
Surat - 394515.
Gujarat

BG No: 8603 / PEBG 160018

Date: 26/10/2016

THIS GUARANTEE made on this 26th day of October 2016 on Bank of India, Secunderabad Branch, MG Road, Secunderabad-500003 (hereinafter called the Bank) which expression shall unless repugnant to the context or contrary to the meaning thereof include its successors on one part and KRISHAK BHARATI COOPETATIVE LIMITED, a multiunit Cooperative Society incorporated under the provisions of Delhi cooperative Societies (Act No 35 of 1972) and having its Registered Office at PO Kribhconagar, Surat, - 394515, Gujarat. (hereinafter called the Owner which expression shall include the successor and assignees), on the other part.



कृते बैंक ऑफ इंडिया
For BANK OF INDIA

ecoshm
11.11.17
वरिष्ठ प्रबंधक (ऋण) / Senior Manager (Cr)
सिकन्दराबाद शाखा / Secunderabad Br.

कृते बैंक ऑफ इंडिया / For Bank Of India

[Signature]
145212
मुख्य प्रबंधक / Chief Manager
सिकन्दराबाद शाखा / Secunderabad Br.

8603/PEBC 160018

WHEREAS the Owner has placed a Purchase Order No. 5007153 dated 15-09-2016 with M/s Sara Infoway ITES India Pvt Ltd having its Registered Office at 304, 4th Floor Mayank Plaza, Greenlands Main Road, Begumpet, Hyderabad- 500016 (hereinafter called the Contractor) for a total cost of Rs. 77,825/- (Rupees Seventy Seven Thousand Eight Hundred and Twenty Five only) for supply of 1 no. Dell i5 Optiplex 7440 All-In-One Desktops Computers.

WHEREAS it is one of the terms of the said Contract that the Contractor shall furnish to the Owner a Guarantee of a Bank which shall be for 5% of the value of the order and shall be valid for the entire work covered by the said contract and entire period of defect liability in the respect of the said work.

WHEREAS the Bank has, at the request of the Contractor, agreed to give in favour of the Owner a Guarantee in manner hereinafter, appearing, which the owner has agreed to accept.

THIS DEED WITNESSETH AS Follows:

1. In Pursuance of the said agreement and in consideration of the promises, the Bank hereby guarantee to the Owner due observance and fulfillment by the Contractor of the terms of the said Purchase Order relating to the said work and of the performance Warranty which is a part of the said contract and agrees and undertakes that if the Contractor fails to observe and fulfill the said terms of the said Contract and /or the performance warranty, then the Bank shall immediately pay to the Owner on demand such sum or, sums of money to the extent of Rs.3,891/- (Rupees Three Thousand Eight Hundred and Ninety One only) being 5% (Five) of the value of the said order on account of losses and damages suffered by the Owner as may be claimed by the Owner by reason of such non-observance and non-fulfillment by the Contractor as aforesaid and shall also indemnify the Owner against all losses and damages suffered by the Owner as aforesaid and against all costs in connection herewith and against all costs, charges, expenses which may be incurred by the owner in connection herewith. The Bank shall pay the said amount without demur or protest or without recourse to the Contractor. Any such demand placed on the bank shall be conclusive as regards the amount due and payable by the Bank under this Guarantee.
2. This guarantee is a continuing guarantee and not revocable except with the previous written consent of the Owner and save as aforesaid it will continue in force until the Contractor has maintained the schedule of delivery of the said work under the said Purchase Order and observed and fulfilled the said performance warranty and all other terms and conditions of said contract. The guarantee is valid upto 19-10-2019



कृते बैंक ऑफ इंडिया
For BANK OF INDIA

वरिष्ठ प्रबंधक (ऋण) / Senior Manager (Cr)
सिकन्दराबाद शाखा / Secunderabad Br.

कृते बैंक ऑफ इंडिया / For Bank Of India

मुख्य प्रबंधक / Chief Manager
सिकन्दराबाद शाखा / Secunderabad Br.

8603 IPEBG. 160018

3. The Owner may, without affecting Bank's liabilities and obligations hereunder, grant time or other indulgence to or compound with the Contractor or enter into any agreement or agree to forebear to enforce any of the terms and conditions of the said Contract against the Contractor or agree to vary any of the terms and conditions of the said Purchase Order.
4. This guarantee shall not be affected by any change in the constitutions of the Owner by absorption with any other body or corporation or otherwise and this guarantee will be available/or enforceable by such body corporation.
5. All compositions and payments received by the Owner from or on behalf of the Contractor shall be regarded as payments is gross and in the event of the Contractor being wound-up, the Owner will be entitled to prove against the properties of the Contractor in respect of the whole of the Contractor's indebtedness to the Owner, without any right on the part of the Bank to stand in Owner's place in respect of or to claim the benefits of such composition and payment or any security held by the Owner until the Owner shall have received the full amount of the claims against the Contractor.
6. In order to give effect to this guarantee the Owner will be entitled to act as if the Bank were the principal debtor and the Bank hereby waives all and any of its rights or surety ship.
7. This guarantee shall continue to be in force notwithstanding the discharge of the Contractor by operation of law and shall cease only on payment of the full amount by the Bank to the Owner of the amount hereby secured and on the claim of the Owner against the Contractor in respect of the said Order being satisfied. However, the guarantee is valid upto 19-10-2019.
8. This guarantee shall be in addition to and not in substitution for any other guarantee or security for the Contractor given or to be given to the Owner in respect of the said Order by the Bank (Whether alone or jointly with others)
9. Unless demand or claim under the guarantee is made within six months from the date of expiry of this guarantee, all the rights of the Owner hereunder shall be forfeited and the Bank shall be relieved and discharged of all liabilities hereunder.
10. The present shall be governed by and construed in accordance with Indian law.

कृते बैंक ऑफ इंडिया
For BANK OF INDIA

वरिष्ठ प्रबंधक (ऋण) / Senior Manager (CR)
सिकन्दराबाद शाखा / Secunderabad Br.

कृते बैंक ऑफ इंडिया / For Bank Of India

मुख्य प्रबंधक / Chief Manager
सिकिद्राबाद शाखा / Secunderabad Br.



+ *[Signature]* 145212

8603 IPEBH 160018

11. Subject to clause 2 here of this guarantee shall remain in force for completion period of i.e. upto 19-04-2020.
12. Any notice by way of request, demand or otherwise hereunder may be sent by post to the Bank addressed as aforesaid and if sent by post, it shall be deemed to have been given at the time when it would be delivered in due course of the post and in proving such notice, when given by post, it shall be sufficient to prove that the envelope containing the notice was posted and certificated signed by an officer of the Owner that the envelope was so posted shall be conclusive.
13. The Bank declares that it has the power to issue the guarantee under Regulations 1959 and the undersigned has full powers to do so on behalf of the Bank.
14. Notwithstanding anything contained hereinabove our liability under this guarantee is restricted to Rs. 3,891/- (Rupees Three Thousand Eight Hundred and Ninety One only) and this guarantee shall remain in force up to 19-10-2019 and we shall be released and discharged from all liabilities hereunder unless a written claim for payment under this guarantee is lodged on us before six months claim period from the date of expiry of the guarantee i.e on 19-04-2020 irrespective of whether or not the original guarantee is returned to us.

Dated at Secunderabad, this 26th Day of October 2016.



कृते बैंक ऑफ इंडिया
For BANK OF INDIA

eeesh
146217
वरिष्ठ प्रबंधक (ऋण) / Senior Manager (Cr)
सिकन्दराबाद शाखा / Secunderabad Br.

कृते बैंक ऑफ इंडिया / For Bank Of India

K. S. 212
मुख्य प्रबन्धक / Chief Manager
सिकन्दराबाद शाखा / Secunderabad Br.

The confirmation of the Bank Guarantee is available with our controlling office. The beneficiary in his own interest should obtain such confirmation from the controlling office at the following address by submitting a copy of Bank Guarantee.

The Zonal Manager,
Bank of India,
Telangana Zonal Office,
PTI Building, A.C. Guards,
Hyderabad-500004,
Telangana

